

2:00 PM LINE 2

23-CIV-01255

BREANNE HERNANDEZ, ET AL VS. RECOLOGY, INC., ET AL

BREANNE HERNANDEZ
MIGUEL ALVAREZ

GARY A. DORDICK
P. CHRISTIAN SCHELEY

Plaintiffs' Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability

TENTATIVE RULING:

For the reasons stated below, the petition is **CONTINUED**. The petitioner's supplemental filing does not adequately address the court's concerns about the proposed minor compromise. The remaining deficiencies are curable and do not presently suggest that the allocation or settlement amount is substantively improper.

The focused conditions should be: **(1)** a verified declaration expressly addressing Amias's current medical, orthopedic, neurological, psychological, developmental/educational status, supported if practicable by his most recent pediatric record; **(2)** a corrected attorney declaration making clear that the operative fee request is \$60,603.46/25%; **(3)** clarification of the \$485.63 medical-payment discrepancy and confirmation that the \$16,906.64 Kaiser/Machinify amount is the only outstanding reimbursement obligation; and **(4)** a revised proposed order/blocked-account order reflecting the \$162,059.14 net recovery.

If those matters are supplied, I see a reasonable basis on this record to approve the \$242,413.86 compromise, the 25% fee, the \$2,844.62 costs, the \$16,906.64 reimbursement, and the resulting \$162,059.14 blocked-account deposit.

If the tentative ruling is uncontested, it shall become the order of the Court.

2:00 PM LINE 3

24-CIV-01921

TRUEBECK CONSTRUCTION, INC., ET AL VS. SETH TAYLOR, ET AL

TRUEBECK CONSTRUCTION, INC.
SETH TAYLOR

A ROBERT ROSIN

Plaintiff/Cross-Defendant Truebeck Construction, Inc.'s Motion for Leave to File a Second Amended Complaint

TENTATIVE RULING:

For the reasons stated below, Plaintiff and Cross-Defendant Truebeck Construction, Inc.'s ("Truebeck") Motion for Leave to File a Second Amended Complaint is **GRANTED**.

BACKGROUND

On June 17, 2022, Truebeck, as general contractor, entered into a contract with Defendant SL 750G, LLC to perform construction work at 750 Gateway Boulevard in South San Francisco. Defendant SmartLabs was a tenant at the property, and Defendant BMR-Gateway of Pacific II LLC, f/k/a BMR-Gateway of Pacific II LP, f/k/a BMR-750, 800, 850 Gateway LP ("BMR"), owns the property.

Truebeck filed this action on March 28, 2024, and filed the operative First Amended Complaint ("FAC") on April 4, 2024. The action has since been consolidated with related matters and includes multiple cross-complaints.

Truebeck now seeks leave to file a Second Amended Complaint. The proposed amendments would: (1) add causes of action for common count/quantum meruit, promissory estoppel, and negligent misrepresentation/concealment against the BMR Defendants; (2) add a cause of action for intentional interference with contractual relations against newly named Director/Investor Defendants and certain existing parties; (3) add SmartLabs 2 as an alleged alter ego and as a party to existing claims; and (4) conform the pleading to prior Doe amendments and expand the alter ego allegations.

Truebeck states that the proposed amendments are based on information obtained in discovery in June 2026, including depositions taken on June 26 and June 30, 2026. The SmartLabs Defendants oppose the motion, arguing that Truebeck did not act diligently because the relevant information was available earlier in document productions and that certain proposed claims are legally futile.

LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (a)(1), authorizes the Court, in furtherance of justice and on terms that are proper, to permit amendment of a pleading. Section 576 similarly provides that a judge may allow amendment of any pleading at any time before or after commencement of trial. A motion for leave to amend is also governed by California Rules of Court, rule 3.1324. Judicial policy favors liberal allowance of amendments so that disputed matters may be resolved in the same action. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047; *Nestle v. City of Santa Monica* (1972) 6 Cal.3d 920, 939.) Even where delay is asserted, denial of leave to amend is generally improper absent prejudice to the opposing party. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) Courts also ordinarily do not determine the legal sufficiency of a proposed amended pleading on a motion for leave to amend; the preferred practice is to